



Bill Number: S.B. 1271

Gowan Floor Amendment

Reference to: printed bill

Amendment drafted by: Leg. Council

FLOOR AMENDMENT EXPLANATION

- Specifies that the prohibition on a municipality imposing a fine or penalty on a business or commercial entity based on the frequency of public safety services does not apply to faulty or repeated nonemergency alerts from alarm systems.

GOWAN FLOOR AMENDMENT
SENATE AMENDMENTS TO S.B. 1271
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 9, chapter 4, article 8, Arizona Revised Statutes,
3 is amended by adding section 9-500.54, to read:

4 9-500.54. Businesses; crime reporting; municipal penalties;
5 prohibition; exception

6 A. A MUNICIPALITY MAY NOT ENACT, ENFORCE OR MAINTAIN AN ORDINANCE,
7 RULE, REGULATION, POLICY OR PRACTICE THAT IMPOSES A FINE OR ANY OTHER
8 PENALTY ON A BUSINESS OR COMMERCIAL ENTITY THAT IS BASED ON THE NUMBER OF
9 OR FREQUENCY OF REQUESTS FOR PUBLIC SAFETY ASSISTANCE OR EMERGENCY
10 SERVICES MADE BY THE BUSINESS OR COMMERCIAL ENTITY AT ANY LOCATION OF THE
11 BUSINESS OR COMMERCIAL ENTITY OR THAT IS BASED ON THE MONETARY VALUE OF
12 PROPERTY THAT BELONGS TO THE BUSINESS OR COMMERCIAL ENTITY THAT HAS BEEN
13 DAMAGED OR STOLEN.

14 B. NOTWITHSTANDING SUBSECTION A OF THIS SECTION, A MUNICIPALITY MAY
15 ENFORCE OR MAINTAIN AN ORDINANCE, RULE, REGULATION, POLICY OR PRACTICE
16 THAT IMPOSES A FINE OR ANY OTHER PENALTY ON A BUSINESS OR COMMERCIAL
17 ENTITY THAT IS BASED ON THE NUMBER OF OR FREQUENCY OF REQUESTS FOR PUBLIC
18 SAFETY ASSISTANCE OR EMERGENCY SERVICES MADE BY THE BUSINESS OR COMMERCIAL
19 ENTITY AT ANY LOCATION OF THE BUSINESS OR COMMERCIAL ENTITY OR THAT IS
20 BASED ON THE MONETARY VALUE OF PROPERTY THAT BELONGS TO THE BUSINESS OR
21 COMMERCIAL ENTITY THAT HAS BEEN DAMAGED OR STOLEN IF BOTH OF THE FOLLOWING
22 APPLY:

23 1. THE REQUESTS FOR PUBLIC SAFETY ASSISTANCE OR EMERGENCY SERVICES
24 MADE BY THE BUSINESS OR COMMERCIAL ENTITY ARE ANY OF THE FOLLOWING:

- 25 (a) MALICIOUS.
26 (b) KNOWINGLY FALSE.
27 (c) FRIVOLOUS.

28 2. THE MUNICIPALITY HAS PROVIDED THE BUSINESS OR COMMERCIAL ENTITY
29 WITH A WRITTEN NOTICE INDICATING THAT THE MUNICIPALITY HAS DETERMINED THAT

1 PRIOR REQUESTS FOR PUBLIC SAFETY ASSISTANCE OR EMERGENCY SERVICES MADE BY
2 THE BUSINESS OR COMMERCIAL ENTITY ARE MALICIOUS, KNOWINGLY FALSE OR
3 FRIVOLOUS.

4 [C. THIS SECTION DOES NOT APPLY TO FAULTY OR REPEATED NONEMERGENCY
5 ALERTS FROM ALARM SYSTEMS. FOR THE PURPOSES OF THIS SUBSECTION, "ALARM
6 SYSTEM" HAS THE SAME MEANING PRESCRIBED IN SECTION 32-101.]

7 Enroll and engross to conform

8 Amend title to conform

DAVID GOWAN

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